

25CV04836 Robert Ottinger v Paul P Weishaar et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-01

Motion: Hearing re Further Explanation re Defendant's Moving Papers

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Tentative Ruling: Robert Ottinger v Paul P Weishaar et al

Case Number

25CV04836

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/01/2026 - 10:00

Nature of Proceedings

Hearing re Further Explanation re Defendant's Moving Papers

Tentative Ruling

Plaintiffs: Robert Ottinger

Defendants: Andrew Wyatt

Issue

Hearing re Further Explanation re Defendant's Moving Papers

RULING

In response to the court's further inquiry regarding the misdescription of the terms of the forum selection provision contained in defendants' motion to quash, counsel for Defendants Paul P. Weishaar and PPW Motorcars, LLC, filed a second declaration of attorney Andrew M. Wyatt and of paralegal Junnie Verceles. As explained in these declarations, the misdescription was the result of AI generated content provided by Wyatt's client which was incorporated into the motion without correction through a series of mishaps. With this explanation, the Court is satisfied that the misdescription was not the result of any knowing or intentional misrepresentation to the Court.

Counsel is ultimately responsible for the content of papers filed with the Court under his signature. Counsel is reminded of his ethical obligations to ensure the accuracy of statements made in Court papers. Having learned a new and insidious way in which AI content can damage the integrity of Court proceedings, the Court finds this learning process and the Court's admonishment to counsel sufficient to resolve the Court's concerns without further proceedings.

The Court vacates its order for counsel to appear at this hearing, so no appearances are necessary for any party.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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